

BED BUG ADDENDUM

Addendum Date

☐ Owner

☐ as Agent for the Owner of

Property Name — enters into this Bed Bug Addendum to the Rental Contract with

("Resident")

Pertaining to House / Unit No.

located at

This addendum is part of the Rental Contract dated

1. This Addendum is part of the Rental Contract and deals with the difficulties and associated problems when bed bugs (*cimex lectularius*) are found in or infesting a house or personal property located in the house.
2. Both Management and Resident agree they inspected the house prior to move-in and did not observe any evidence of bed bugs or a bed bug infestation.
3. Management represents and agrees that it is not aware of an infestation or presence of bed bugs in the house or building in which the house is located; or, if there was a prior infestation or presence in the house or building, it has been professionally treated by a licensed pest control vendor and is believed to be free of further infestation.
4. Resident represents and agrees that he or she has read the information about bed bugs provided by Management and is not aware of an infestation or presence of the pest in Resident's current or previous residences, home, or occupancy. Resident represents and agrees that he or she is not aware of any bed bug infestation or presence in any of his or her furniture, clothing, or personal property and possessions and has fully disclosed any previous bed bug infestation which Resident may have experienced. Resident represents that if he or she was previously living in a residence that had a bed bug infestation, that he or she has had all furniture, clothing, and personal property or belongings professionally and properly cleaned and treated by a licensed professional pest control service and believes that such items are free of further infestation. In the event Resident discloses a previous experience of bed bug infestation, Management shall have the right to see documentation of the treatment and inspect Resident's personal property and possessions to confirm the absence of bed bugs.
5. Resident acknowledges that used or discarded furniture, clothing, and personal property obtained from other owners or found abandoned and discarded can contain bed bugs which will infest the house, be extremely difficult to control, and that the costs associated with treating bed bugs and lost revenues associated with it are expensive. Resident represents and agrees that he or she shall not create or allow a condition or personal property to enter the house that will cause or allow an infestation or presence of bed bugs in the house. Resident shall not engage in risky behavior of bringing furniture, clothing, or personal property found on the street, in a dump, or acquired second hand or used without confirming the absence of bed bugs or properly and professionally cleaning and treating the items by a licensed professional pest control service before bringing such items into the house.
6. Resident shall allow Management and its pest control vendors to have access to the house at reasonable times and hours for inspection, pest control, and treatment of bed bugs. Resident and his family members, occupants, social guests, and invitees shall cooperate and shall not interfere with Management's inspections or treatments.
7. Resident shall promptly notify Management of any conditions that may indicate the presence of bed bugs in the house or in any of Resident's clothing, furniture, and personal property. Resident shall promptly notify Management of any recurring or unexplained bites, stings, irritations, sores of the skin or body which Resident believes are occurring from bed bugs or from any condition or pest believed to be within the house. Resident shall promptly notify Management if he or she discovers any condition or evidence that might indicate the presence or infestation of bed bugs or of any confirmation of bed bug presence by a pest control service or other authoritative source.
8. Upon confirmation of the presence or infestation of bed bugs, Resident must cooperate and coordinate with Management and its pest control service to treat and eliminate the bed bugs. Resident must follow all directions of Management or its vendor to clean and treat the house and building in which it is located. The Resident is required to remove or destroy personal property that cannot be treated or cleaned.
9. In the event bed bugs are determined to be in the house, Management shall have the right to terminate the lease and require Resident to vacate the house and remove all furniture, clothing, and personal belongings in order to treat the house and building. Management shall have the right to terminate the lease and obtain possession of the house — regardless of who is responsible for causing the infestation or presence of bed bugs. Due to the difficulty of treating and repetitive treatments necessary to control the infestation, Resident must vacate the house and remove all personal property and possessions to provide full access and fully treat and clean the house. Resident must vacate the premises, removing all personal property and persons in order for Management to perform pest control services. A determination of the cause or source of the bed bug infestation or presence may occur at a later date after the lease has been terminated, all personal property has been removed, and possession has been returned to Management. Resident does not have the right to withhold possession of the house and refuse to move until Management has his or her personal property and possessions treated and cleaned. Resident must first move and treat his or her personal property in accordance with widely accepted treatment methods and procedures as established by a licensed professional pest control service provider. A Resident who fails to vacate after the lease has been terminated will be liable for double holdover rent as provided in the Rental Contract.

10. Management shall have the right to select the method of treating the house, building, and any shared areas of the property for bed bugs. Resident is responsible for and must treat his or her own personal property and possessions.
11. If Resident is allowed to transfer to another rental property of the owner or Management, Resident must have his or her personal property and possessions professionally treated by a licensed pest control service prior to move-in and cooperate in preventing further infestation or spreading of bed bugs to another property or building by having all personal property and possessions treated or cleaned by a licensed professional pest control service. Resident shall cooperate in providing proof of such cleaning and treatment to Management's satisfaction. Resident will not be eligible for transfer if Resident or Resident's family members, occupants, social guests, or invitees caused or are responsible for the infestation or presence of bed bugs in the house or building.
12. If Resident or Resident's family members, occupants, social guests, or invitees are responsible for causing or introducing bed bugs into the house, Resident shall be in default of the lease and shall be liable for all rent, damages, cleaning and pest control fees, and other charges as provided in the Rental Contract. Resident shall pay all reasonable costs of cleaning and pest control treatment Management incurs to remedy Resident's breach of the Rental Contract. If Management must move other residents out of their residences in order to treat adjoining or neighboring properties, then Resident shall be liable for payment of any lost rental income and other expenses incurred by Management to relocate the neighbors and perform pest control treatment to eradicate an infestation in other residences.
13. If the Resident or Resident's family members, occupants, social guests, or invitees are not responsible for causing or introducing bed bugs into the house, Resident shall not be in default of the Rental Contract but still must vacate the house and return possession upon termination of the lease. The fact that a Resident was unaware that he or she was bringing bed bugs into the house will not relieve the Resident of liability if the Resident knew or should have known about the infestation or engaged in risky behavior that was likely to start an infestation within the house.
14. Under no circumstances shall Management or Resident be liable to each other for punitive damages for breach of contract related to bed bugs. Under no circumstances shall Management or Resident be liable to each other for punitive damages for mere negligence related to bed bugs.
15. Resident shall promptly report to Management any known or suspected bed bug infestation or presence in the house. Resident shall not try to treat the house for a bed bug infestation on his own and acknowledges that Management has the full right to select a licensed and qualified professional pest control vendor to perform treatments and cleaning of the house and building. Management shall have the right to set all conditions necessary for inspection and treatment of the premises for the presence or infestation of bed bugs. Management shall have the same right of inspection and treatment of adjacent or neighboring properties to the infestation even if those properties are not the source or cause of the known infestation. You must report any signs or suspicions of bed bugs to Management as soon as possible and cooperate in providing access for inspection and treatment. It is important that you use good housekeeping practices — clean and vacuum on a regular weekly basis.
16. If any portion or provision of this addendum is declared to be invalid or unenforceable, then the remaining portions shall be severed and survive and remain enforceable. The court shall interpret and construe the remaining portion of this addendum so as to carry out the intent and effect of the parties.

Name of Owner or Management Company

Resident

B

y:

Signature of Owner or Management Company

Resident

A

s:

(Title)

Resident

Resident

Resident

Resident

Information About Bed Bugs

The scientific name for bed bugs is *cimex lectularius*. An adult bed bug is about one eighth to one quarter inch in length, somewhat oval shaped, and very flat. Adults are about the size of a small seed. They can be hard to spot and hide in cracks and holes when disturbed. Bed bugs are nocturnal, meaning that they come out at night. Adult bugs may be reddish-brown in color.

Bed bugs hatch from eggs between six and seventeen days. The bugs go through a repetitive molting process as they grow and mature. Female bugs lay eggs on a daily basis. The bugs can survive in a vacant room or abandoned furniture for long periods of time without feeding. Bed bugs are extremely hardy and can live up to 18 months without eating. Bed bugs can be found in vacant as well as occupied residences.

Bed bugs cannot fly, but move quickly and can go unnoticed because of their small size. They can enter a new space or environment by climbing onto a person's clothing or personal belongings when a person comes in contact with an infested area. Bed bugs can enter a home when someone brings in used furniture, clothing, or other personal property that has an infestation. Bed bugs can spread through cracks in walls and floors to migrate from one dwelling to another.

False claims that associate bed bugs' presence with poor hygiene have caused some residents, out of shame, to avoid notifying management of their presence. This serves only to enable the spread of bed bugs. While bed bugs are, by their very nature, more attracted to clutter, they are certainly not discouraged by cleanliness. Bottom line: bed bugs know no social and economic bounds; claims to the contrary are false.

Bed bugs reach the peak of nighttime activity just before dawn. They are drawn to warm blooded animals and people by carbon dioxide and warmth. A bed bug bite may not be noticeable at the time of the bite and usually begins to feel irritated several hours later. The bite may produce a welt or bump that is like a flea or mosquito bite. Sometimes there appears to be three bites in a row, but there is not always a pattern. Bites usually are found on the face, neck, or arms. Bed bugs are not known to carry any transmittable diseases; however, some people might have an allergic reaction to the bites.

Residents should never buy or acquire used furniture and introduce it to the home if they are not sure it is free from infestation. Never bring home furniture, couches, chairs, mattresses, beds, pillows, or clothing found abandoned or discarded. Do not keep mattresses or box springs that are infested or have holes or tears which allow the bugs to climb inside and come out at night. Do not bring into the home discarded furniture, bedding, or clothes which are found on the roadside, a dump, a garbage collection site, or abandoned.

Infestations are commonly found in bedrooms and sleeping areas. Possible signs or indications of an infestation include unexplained bites that occur while sleeping and molted skins of adult bugs. You may also see bed bugs that have recently hatched and are similar in shape to adults but are whitish and almost translucent. Eggs are very small, white, and sticky. The excrement of adult bugs is black, dark red, brown, or rust colored spotting or staining and may be seen around the seams of mattresses or bedding. You may actually observe an adult bug — they are usually found around bedding.

There are many forms of treatment to rid a home of bed bugs, but the process may require multiple applications of pesticides, chemicals, or other substances over several weeks. It may be necessary to dispose of bedding or carpeting if it cannot be properly treated. Management will decide which form of treatment to use but must have complete access to an empty home. This will require that a resident and his or her family move out and take all furniture, clothing, and personal possessions with them. The resident's personal property must be properly treated or it may result in transmitting the pest to another home. Treatment will also involve cleaning and vacuuming.

Even if the infestation is in another unit in your building, Management may need access to your home for inspection and treatment to prevent the spread of the pest. Whether you must move in order for the treatment to occur will depend on a number of factors. Management may need to inspect and observe your home in order to ensure there is no cross infestation or migration from another dwelling.

You must report any signs or suspicions of bed bugs to Management as soon as possible and cooperate in providing access for inspection and treatment.

DO NOT ATTEMPT TO TREAT BED BUG INFESTATIONS ON YOUR OWN! Under no circumstance should you attempt to eradicate bed bugs without notifying management. Health hazards associated with the misapplication of traditional and

non-traditional, chemical-based insecticides and pesticides pose too great a risk to you and your neighbors.

It is important that you use good housekeeping practices. Clean and vacuum on a regular weekly basis. It is important that you notify Management as soon as possible if you suspect bed bugs are present in the home.